

ARCHITECTURAL GUIDELINES

AND

RULES AND REGULATIONS

DATE: July 10, 2016

THE PINERY FILING NO. 11

THESE ARCHITECTURAL GUIDELINES AND RULES AND REGULATIONS HAVE BEEN PREPARED BY THE BOARD OF DIRECTORS OF THE PINERY FILING NO. 11 HOMEOWNERS' ASSOCIATION. THE DESIGN REVIEW COMMITTEE AND THE BOARD OF DIRECTORS RESERVE THE RIGHT TO ADD TO OR TO MODIFY THESE GUIDELINES AND RULES AT THEIR DISCRETION. PLEASE CHECK WITH THE DESIGN REVIEW COMMITTEE TO BE CERTAIN THAT YOU HAVE THE LATEST EDITION.

TABLE OF CONTENTS

	<u>Page</u>
I. INTRODUCTION	2
1.1 Basis for Guidelines.	2
1.2 Contents of Guidelines.	3
1.3 Design Review Committee.	3
1.4 Committee Address and Phone.	3
1.5 Effect of Declaration and Supplemental Declarations. 3	3
1.6 Effect of Development Guide.	3
1.7 Effect of Governmental and Other Regulations. ...	4
1.8 Interference with Utilities.	4
1.9 Goal of Guidelines.	4
1.10 Residential Purposes Only.	4
II. SPECIFIC TYPES OF IMPROVEMENTS - GUIDELINES.	5
2.1 General.	5
2.2 Accessory Buildings and Outbuildings.	5
2.3 Additions and Expansions.	5
2.4 Address Numbers.	6
2.5 Advertising.	6
2.6 Air Conditioning Equipment.	6
2.7 Animals.	6
2.8 Antennae.	6
2.9 Awnings.	6
2.10 Balconies. See Decks.	6
2.11 Basketball Backboards.	7
2.12 Birdbaths. See Statues.	7
2.13 Birdhouses and Birdfeeders.	7
2.14 Boats. See Motor Homes.	7
2.15 Building Setbacks.	7
2.16 Business Activity.	7
2.17 Cable TV Antenna. See Antennae.	7
2.18 Campers. See Motor Homes.	8
2.19 Carport. Approval is required.	8
2.20 Circular Drives. See Driveways.	8
2.21 Clothes Lines and Hangers.	8
2.22 Cloth or Canvas Overhangs. See Overhangs.	8
2.23 Commercial Vehicles.	8
2.24 Cooling Units.	8
2.25 County Regulations.	8
2.26 Damage.	9
2.27 Decks.	9
2.28 Dog Runs.	9
2.29 Doors.	10
2.30 Drainage.	10
2.31 Drilling or Mining.	10
2.32 Driveways.	10
2.33 Evaporative Coolers.	11
2.34 Exterior Lighting.	11

2.35	Exterior Surfaces.	11
2.36	Fences.	11
2.37	Firearms.	12
2.38	Firewood Storage.	13
2.39	Flagpoles.	13
2.40	Garbage Containers and Storage Areas.	13
2.41	Gardens - Flower.	13
2.42	Gardens - Vegetable.	13
2.43	Gazebos; Pergolas.	13
2.44	Grading and Grade Changes. See Drainage.	13
2.45	Greenhouses.	13
2.46	Hanging of Clothes. See Clotheslines and Hangers.	14
2.47	Heating and Cooling Units and Solar Panels.	14
2.48	Hot Tubs.	14
2.49	Intersections.	14
2.50	Irrigation Systems.	14
2.51	Jacuzzis. See Hot Tubs.	14
2.52	Junk Vehicles.	14
2.53	Kennels.	14
2.54	Landscaping.	14
2.55	Landscape Preservation.	15
2.56	Landscape Maintenance.	15
2.57	Lights and Lighting.	16
2.58	Mailboxes.	16
2.59	Microwave Dishes.	16
2.60	Mining.	16
2.61	Motor Homes.	16
2.62	Nonconforming Improvements.	17
2.63	Ornaments.	17
2.64	Outbuildings. See Accessory Buildings and Outbuildings.	17
2.65	Overhangs - Cloth or Canvas.	17
2.66	Painting.	17
2.67	Parking.	18
2.68	Patio Covers.	18
2.69	Patios - Enclosed. See Additions and Expansions.	19
2.70	Patios - Open.	19
2.71	Pets.	19
2.72	Pipes. See Utility Equipment.	20
2.73	Play and Sports Equipment.	20
2.74	Poles. See Flagpoles, Utility Equipment, Basketball Backboards, etc.	20
2.75	Pools.	20
2.76	Radio Antennae. See Antennae.	20
2.77	Residence Size.	20
2.78	Rooftop Equipment.	21
2.79	Sales Offices/Model Homes.	21
2.80	Saunas.	21
2.81	Screen Doors. See Doors.	21
2.82	Setbacks. See Building Setbacks.	21
2.83	Sewage Disposal System.	21

2.84	Shutters (Exterior).	21
2.85	Siding. See Exterior Surfaces.	21
2.86	Sight Distance at Intersections. See Intersections. 21	
2.87	Signs.	21
2.88	Solar Panels.	21
2.89	Spas. See Hot Tubs.	21
2.90	Sprinkler Systems.	21
2.91	Statues.	22
2.92	Stone Walkways.	22
2.93	Storage.	22
2.94	Storage Sheds. See Accessory Buildings.	22
2.95	Storage Tanks.	22
2.96	Sunshades. See Overhangs.	22
2.97	Swamp Coolers. See Air Conditioning Equipment.	22
2.98	Swing Sets. See Play and Sports Equipment.	22
2.99	Television Antennae. See Antennae.	22
2.100	Temporary Structures.	22
2.101	Trailers. See Parking.	23
2.102	Trash Containers and Enclosures.	23
2.103	Tree Removal. See Landscape Preservation.	23
2.104	Treehouses.	23
2.105	Trucks. See Parking.	23
2.106	Underground Installations.	23
2.107	Utility Lines and Facilities.	23
2.108	Vanes. See Ornamentation.	24
2.109	Vehicles (Large). See Parking.	24
2.110	Vents. See Rooftop Equipment.	24
2.111	Walls. See Fences.	24
2.112	Walls - Retaining.	24
2.113	Water Systems.	24
2.114	Wells.	24
2.115	Windows and Awnings.	24
2.116	Wind Chimes.	24
2.117	Wood Storage.	24
III.	PROCEDURE FOR COMMITTEE APPROVAL	25
3.1	General.	25
3.2	Drawings or Plans.	25
3.3	Submission of Drawings and Plans.	26
3.4	Review Fee.	26
3.5	Action by the Committee.	26
3.6	Failure of Committee to Act on Plans.	26
3.7	Prosecution of Work.	27
3.8	Records.	27
3.9	Rights of Appeal.	27
3.10	Appeal to Court of Law.	27
3.11	Nonliability.	28

I. INTRODUCTION

1.1 Basis for Guidelines.

These Architectural Guidelines and Rules and Regulations are intended to assist the Owners in The Pinery Filing No. 11 in maintaining the overall general appearance and "feel" of the neighborhood as well as preserving property values by providing the Master Association a mechanism for recourse should an Owner of The Pinery Filing No. 11 implement an "improvement" considered by a majority of Members to be detrimental to the surrounding property values. As provided for in Section 4.14 of the Declaration of Protective Covenants and Restrictions of The Pinery Filing No. 11 ("Declaration"), these rules and regulations are adopted by the Master Association with respect to the use of Lots. The DECLARATION REQUIRES PRIOR APPROVAL OF THE DESIGN REVIEW COMMITTEE BEFORE ANY "IMPROVEMENTS" ARE COMMENCED ON OR TO A LOT IN THE PINERY FILING NO. 11. As of 2016, all of the lots in Filing No 11 have been built. These Architectural Guidelines were rewritten to significantly reduce the oversight required of the Design Review Committee and Master Association for ongoing maintenance and upkeep of properties and structures within the Pinery Filing NO. 11.

Previously, plans and supporting documentation were required to be submitted to the Design Review Committee prior to the commencement of any Improvements pursuant to Article III of these Guidelines. Section 6.2 of the Declaration provides that no structure, including but not limited to residences, accessory buildings, antennae, flag poles, fences, walls, house numbers, mail boxes, exterior lighting, or other improvements shall be constructed or maintained upon any Lot, nor shall any alteration, nor shall any replat of any Lots, nor shall any repainting to the exterior of a surface, be made, nor shall any landscaping be performed (all of the foregoing being referred to herein as "Improvements") without the prior written approval of the Committee and Senior Corp., the Declarant under the Declaration.

To assist Lot Owners, the Declaration authorizes the Master Association and Design Review Committee to establish guidelines for approval, and to adopt rules and regulations. As of 2016, this booklet contains the guidelines and rules and regulations established by the Master Association. Throughout this document the term "property" shall refer to a Lot, and the term "Committee" shall refer to the Design Review Committee. All undefined terms shall have the meanings set forth in the Declaration.

1.2 Contents of Guidelines.

In addition to the introductory material, the Guidelines contain (a) a listing of specific types of Improvements which Lot Owners might wish to make with specific information as to each of these types of Improvements; (b) rules and regulations applicable to the Lots; and (c) a summary of procedures for obtaining approval from the Committee.

1.3 Design Review Committee.

The Committee consists of three members, all of whom are appointed by the Board of Directors of the Master Association.

1.4 Committee Address and Phone.

The address of the Committee will be the same as the address of the Master Association. The present address of the Committee is 6950 Pinery Parkway South, Parker, Colorado, 80134. The phone number of the secretary/treasurer of the Master Association is (303)805-2481.

1.5 Effect of Declaration and Supplemental Declarations.

The Declaration is a document governing property within The Pinery Filing No. 11. Particular areas or group of Lots become part of the Master Association Area by annexation pursuant to a Supplemental Declaration. As of May 2016, there are no known Supplemental Declarations. Copies of the Declaration are delivered to new Lot Owners when they purchase their Lots and are available at any time at the Master Association Office. Each Owner should review and become familiar with the Declaration. Nothing in these Guidelines can supersede or alter the provisions or requirements of the Declaration. If there is any conflict or inconsistency, the Declaration will control. Provisions relating to the use of property are found in Articles VI and VII of the Declaration.

1.6 Effect of Development Guide.

The Pinery Development Guide, 3rd Amendment, was approved by the Board of the County Commissioners of Douglas County on August 8, 1989, and has been recorded in the Douglas County real estate records (the "Development Guide"). The Development Guide defines permitted uses in the various areas of The Pinery Filing No. 11 and contains some provisions which could affect Improvements by Lot Owners. The Development Guide establishes, among other things, minimum Lot area and, in some cases, minimum Lot width, minimum front yard, side yard and rear yard distances (i.e., "set backs") and maximum building height. The Development Guide identifies permitted accessory buildings and uses and sets development standards for accessory buildings.

1.7 Effect of Governmental and Other Regulations.

Use of property and Improvements to property must comply with applicable building codes and other governmental requirements and regulations. Approval by the Committee will not constitute assurance that Improvements comply with applicable governmental requirements or regulations or that a permit or approvals are not also required from applicable governmental bodies. For general information about Douglas County requirements, Owners may write or call the Douglas County Planning or Building Departments.

1.8 Interference with Utilities.

In making Improvements to property, the Owner is responsible for locating all water, sewer, gas, electrical, cable television or other utility lines or easements. Owners should not construct any Improvements over such easements without the consent of the utility involved and the Owner will be responsible for any damage to any utility lines.

1.9 Goal of Guidelines.

Compliance with the Guidelines and Rules and Regulations, the provisions of the Declaration will help preserve the inherent architectural and aesthetic quality of The Pinery Filing No. 11. It is important that the Improvements to property be made in harmony with and not detrimental to the rest of the community. A spirit of cooperation with the Committee and neighbors will go far in creating an optimum environment which will benefit all Owners. By following these Guidelines and Rules and Regulations and obtaining approvals for Improvements to property from the Committee, Owners will be protecting their financial investment and will help insure that improvements to property are compatible with standards established for The Pinery Filing No. 11. If a question ever arises as to the correct interpretation of any terms, phrases or language contained in these Guidelines and Rules and Regulations, the Committee's interpretation thereof shall be final and binding.

1.10 Residential Purposes Only.

It is expressly agreed that all Lots shall be for residential purposes only and no building shall be erected or placed on any Lot other than one private residential structure, together with a private garage and such outbuildings as are customarily appurtenant to such a dwelling. No more than one single family, its servants and occasional guests may reside upon any one Lot. Family shall mean and refer to persons related by blood or marriage, by legal adoption or by operation of law.

II. SPECIFIC TYPES OF IMPROVEMENTS - GUIDELINES.

2.1 General.

Following is a listing, in alphabetical order, of restrictions, rules and regulations with respect to the use of Lots, as well as a wide variety of specific types of Improvements which Owners typically consider constructing or installing: with pertinent information as to each. Unless otherwise specifically stated, drawings of plans for a proposed Improvement must be submitted to the Committee, and written approval of the Committee must be obtained before the improvements are made. In some cases, where specifically stated, a type of Improvement is prohibited. If you plan to construct an Improvement not listed below, approval of the Committee is required.

2.2 Accessory Buildings and Outbuildings.

Approval is required to construct or install an accessory or outbuilding. Approval will be based upon, but not limited to, the following criteria:

- (a) Must be of design similar and complementary to the design of the residence, and materials similar or identical with the residence.
- (b) Maximum sizes for Accessory Buildings and Outbuildings not specifically referred to in these Guidelines will be 8' x 10' x 8-1/2' height including skids, foundation or concrete slab. Requests for approval will be reviewed on a case-by-case basis, taking into consideration the Lot size, square footage of the residence and proposed location of Accessory Building or Outbuilding.
- (c) Must be screened by a fence, or shrubs and/or trees equal to 3/4 the height of the shed or accessory building at planting.
- (d) Highest point must not be more than 4' above the top of the screening fence at its lowest point.
- (e) Roof should be complementary to existing roof on residence.
- (f) Should not unreasonably obstruct adjacent neighbor's view of mountains or open areas.

2.3 Additions and Expansions.

Approval is required. Additions or expansions to the residence or Accessory Building or Outbuilding will require submission of detailed plans and specifications. Removal of an existing Accessory Building or Outbuilding does not require approval of the Master Association or Committee.

2.4 Address Numbers.

See Signs.

2.5 Advertising.

See Signs.

2.6 Air Conditioning Equipment.

Maintenance and/or replacement of Air conditioning equipment in its current location does not require approval by the Master Association or Committee. Should an Owner wish to install a new air conditioning unit or replace a unit in a different location than currently installed: then: (i) the proposed location should be selected to minimize the visibility to adjacent property Owners or the public from any roads, trails or other public areas; and (ii) such Owner must check with the neighbors immediately adjacent to the new location who might be affected by the noise, prior to bringing such proposed location to the Committee for review and approval. Installation of air conditioning equipment on the roof is prohibited by these Guidelines.

2.7 Animals.

All animals, except household pets as allowed in Section 2.74, shall be prohibited, including but not limited to pigs, goats, horses, cows and cattle, stallions, fowl and poultry, rabbits, livestock, llamas, snakes and exotic animals.

2.8 Antennae.

No shortwave, large, or unsightly antennae may be erected or installed. The determination of "large" and/or "unsightly" will be made by the Master Association board of directors or the Committee. In order to prevent the Owner from incurring costs associated with the removal of a shortwave or "large unsightly" antennae, the Owner is advised to check with the Master Association board of directors or Committee prior to attempting to install such a device. Satellite dishes from DBS and other commercial satellite operators (e.g. DirecTV, DISH, ViaSat) shall not require approval provided such satellite dish does not exceed two and a half feet in diameter.

No wind-powered electrical generators shall be permitted.

2.9 Awnings.

See Overhangs.

2.10 Balconies. See Decks.

2.11 Basketball Backboards.

- (a) Approval is not required if garage mounted with the backboard and support structure painted to match the color scheme of the residence or is a color generally recognized as a complement to the existing color scheme of the residence. Garage mounted backboard in front yard may not project more than two feet from the front of the garage.
- (b) Approval is required for any pole mounted backboard.
- (c) Free standing basketball poles do not require approval but need to stay in good maintenance.

2.12 Birdbaths. See Statues.

2.13 Birdhouses and Birdfeeders.

Approval is not required if limited to 1 foot by 2 feet and if no more than five in number is installed on any Lot. A birdhouse or birdfeeder which is mounted on a pole may only be installed in the backyard.

2.14 Boats. See Motor Homes.

2.15 Building Setbacks.

The minimum principal setback for each residence or Accessory Building from any public street right-of-way (excluding state highways and major county arterials), private street easement or from any other property line shall be:

	<u>Dwelling Unit</u>	<u>Accessory Building</u>
Building Front	20 feet	20 feet
Building Sides	7.5 feet	10 feet
Building Rear	20 feet	10 feet

2.16 Business Activity.

Except for a permitted business activity as described in Section 7.3 of the Declaration, no trade, business or commercial activity shall be conducted, carried on or practiced on any Lot or in a residence constructed thereon, and the Owner of said Lot shall not suffer or permit any residence erected thereon to be used or employed for any purpose that will constitute a nuisance at law or that will detract from the residential value of said Lot or other Lots in The Pinery Filing No. 11.

2.17 Cable TV Antenna. See Antennae.

2.18 Campers. See Motor Homes.

2.19 Carport. Approval is required.

2.20 Circular Drives. See Driveways.

2.21 Clothes Lines and Hangers.

Some residents have chosen to put up and remove clothes lines in a day-use manner in unobtrusive areas in their back yards on warm days. Clothes lines or clothes hangers of a temporary nature in a back or side yard are acceptable if not left in use for multiple continuous days.

2.22 Cloth or Canvas Overhangs. See Overhangs.

2.23 Commercial Vehicles.

- (a) Commercial Vehicles mean any vehicles licensed by the State of Colorado or any other state whose license plate includes the word "truck" and has other indications of its commercial use such as sign equipment. All vehicles with "GTM" (Gross Ton Miles) on the license plate shall be Commercial Vehicles.
- (b) Commercial Vehicles must not be parked in such a manner as to be visible from any other property for any reason except when used temporarily during the normal course of repairs and/or improvements at a residential site.
- (c) No residential site or public or private street shall be used for the private parking of any Commercial Vehicle unless such vehicle is in a garage or approved enclosure and is completely out of view of any and all other properties, including roads, trails, and other public areas.

2.24 Cooling Units.

See Heating and Cooling Units and Solar Panels.

2.25 County Regulations.

The zoning restrictions contained in The Pinery Development Guide, 3rd Amendment, the Third Major Plan Amendment to the Pinery P.D. Plan and Rezoning, and the building codes, and rules and regulations of Douglas County, Colorado are considered to be a part hereof, and to any extent that these Guidelines might establish minimum requirements which conflict with the minimum requirements established by said zoning restrictions, building

codes and rules and regulations, the most restrictive shall apply. In the event of any conflict between the zoning restrictions contained in The Pinery Development Guide or the Third Major Plan Amendment to the Pinery P. D. Plan and Rezoning and the Douglas County Zoning Ordinances, The Pinery Development Guide and the Third Major Plan Amendment to the Pinery P. O. Plan and Rezoning shall control.

2.26 Damage.

In the event of damage to any residence or other structure located upon a Lot, repairs shall be initiated within thirty (30) days. Initiation of repairs includes coordination with the Owner's insurance organization and contracting companies in order to affect the repair to restore the damaged residence or structure to its original state. Should an Accessory Building or Outbuilding be damaged beyond repair, the structure and debris shall be removed from the Lot within sixty (60) days.

Should a residence be rendered uninhabitable and/or a total loss, the Master Association board of directors should be notified such that they may determine appropriate Master Association action.

2.27 Decks.

For new construction of a deck, approval is required. Must be of similar or complimentary material of the residence and painted a similar or generally accepted as a complementary color to the residence. Must be installed as an integral part of the residence and/or patio area. Must be located so as not to obstruct or diminish greatly the view of adjacent property owners or to create an "unreasonable" level of noise for adjacent property owners.

Routine maintenance and repair of decks and deck material does not require approval of the Master Association or Committee. Decks should be stained/painted a similar or generally accepted as complementary color to the residence. Replacement of an existing deck does not require approval of the Master Association or Committee if the replacement deck does not substantially alter the previous installation and maintains similar or generally accepted complementary colors to the residence.

2.28 Dog Runs.

Dog runs shall be substantially screened from view, and no more than five feet high in maximum height. The fence shall be of design and material so as to allow light to pass through and not be a solid wall. Dog runs are fenced off areas designed for the temporary occupancy of one or two dogs. No more than one dog run shall be erected on any Property.

2.29 Doors.

Approval is not required for the addition of screen or other type doors to a home or an Outbuilding if the material matches or is similar to existing doors on the house and if the color is generally accepted as a complementary color to that of existing doors on the house.

2.30 Drainage.

Approval is required for any change significantly affecting drainage.

- (a) There shall be no interference with the established drainage pattern over any property except as approved in writing. The established drainage pattern means all natural surface drainage, whether offsite or onsite, shall always be allowed to freely pass through all Lots as required in order to reach its natural destination.
- (b) When installing landscaping, it is very important to insure that water drains away from the foundation of the residence and that the flow patterns prevent water from flowing under or ponding near or against the residence foundation, Outbuildings, walkways, sidewalks or driveways into the established drainages.
- (c) A report from a drainage engineer may be required as part of landscaping or Improvement plan approval to insure proper drainage around all Improvements, including Outbuildings.
- (d) Drainage swales existing on each Lot shall be maintained by the Owner of said Lot.

2.31 Drilling or Mining.

No oil or gas drilling, oil or gas development operations, oil refining, quarrying, or mining operations of any kind shall be permitted upon or in any Lot, nor shall oil or gas wells, tanks, tunnels, mineral excavations, or shafts be permitted upon or in any Lot. No derrick or other structure designed for use in boring for oil or natural gas shall be erected, maintained, or permitted on any Lot.

2.32 Driveways.

All access from the street to the buildings and residence, commonly referred to as a driveway, on a Lot, shall have a permanent surface of paving, cement, asphalt, or permanent improvement. Dirt and gravel driveways are prohibited.

Construction, extension, or expansion of driveways requires approval. Maintenance, repair, or replacement of an existing driveway does not require Master Association or Committee approval provided it does not extend or expand the previously existing driveway. Approval is needed if the appearance is significantly changed when being replaced. Driveway culverts for each Lot shall be maintained by the Owner of said Lot.

2.33 Evaporative Coolers.

See Air Conditioning Equipment.

2.34 Exterior Lighting.

See Lights and Lighting.

2.35 Exterior Surfaces.

The homes in The Pinery Filing No. 11 have a predominantly wood or wood/brick appearance. Maintenance of Cedar and other woods requires periodic staining/painting. No metal or vinyl siding is permitted. No exposed natural (mill finished) aluminum or galvanized flashing is permitted.

There are many relatively new materials available that are capable of providing the appearance of wood, but which require less maintenance and provide significantly greater durability and fire/weather resistance. Should an Owner wish to consider use of these types of materials, the Owner should preserve the current general appearance of the residence and obtain Master Association or Committee approval. Sample materials, pictures of the residences utilizing the sample materials, or other information will be required by the Master Association or Committee in order to determine whether or not the proposed material will preserve the overall appearance of the residence and conformance with existing Pinery Filing No 11 residences.

Re-staining or repainting wood exterior surfaces substantially the same colors as they are currently, which may result in minor variations of color or shading, does not require Master Association or Committee approval.

2.36 Fences.

The fences along lot boundaries in The Pinery Filing No. 11 are of predominantly wood (split rail, 1x6, 2x6) and field fence wire type of construction. Maintenance of implemented fences/fence materials is expected and does not require Master Association or Committee approval. Painting or staining of fence material should be of natural colors or tones.

Should an Owner wish to replace an existing fence, they should inform adjacent Lot Owners of their plans to replace the existing fence and use materials of a similar nature to the currently existing fence.

Should an Owner wish to install a new fence along a Lot boundary where a fence has not previously existed, the Owner should discuss the desired installation with adjacent Lot Owners. If there are no objections from adjacent Lot Owners, approval from the Master Association or Committee is not required. If there are objections from adjacent Lot Owners, the Master Association board of directors or the Committee will adjudicate the issue with due consideration of the noted objections and will determine whether or not the Owner may install the new fence.

Replacement of an existing, or installation of a new lot boundary fence should preserve the overall appearance of the neighborhood and shall conform to the following:

- (a) Fences, walls or hedges shall not exceed five (5) feet in height and shall be of a design and material so as to allow light to pass through and not be a solid wall. Privacy fences of any type require approval prior to installations. In general, privacy fences are greater than 5'tall.
- (b) The Lot Owner shall maintain in constant repair fencing installed on his/her Lot and shall ensure that such fencing is sufficient at all times to prevent permitted household pets located on such Lot from straying outside the boundaries thereof.
- (c) Fence sections which front any public or private street, or common walkway, must be constructed such that the side of the fence which is generally accepted as being the most "finished" side faces said public or private street, common walkway, etc.
- (d) No plastic, chicken wire, hog wire, barbed wire, electric, chain link, wire mesh, slump block, concrete block or strand wire fences or walls will be allowed as lot boundary separators

2.37 Firearms.

Except for the purpose of self-defense, the discharge of firearms on any portion of The Pinery Filing No. 11 is expressly prohibited.

2.38 Firewood Storage.

See Wood Storage.

2.39 Flagpoles.

Approval of the Master Association or Committee is required. May not exceed height of the peak roof line of the house.

2.40 Garbage Containers and Storage Areas.

See Trash Storage.

2.41 Gardens - Flower.

Approval is not required. All must be weeded, cared for and carefully maintained.

2.42 Gardens - Vegetable.

Approval is not required if located in the rear or side yard.

2.43 Gazebos; Pergolas.

Maintenance of existing gazebos and pergolas is expected and does not require Master Association or Committee approval.

Should an Owner wish to replace an existing gazebo or pergola, they should use materials of a similar nature to the currently existing one and not expand the size or footprint of the existing Gazebo or pergola unless approval is obtained from the Master Association or the Committee.

Should an Owner wish to install a new gazebo or pergola, the Owner should discuss the desired installation with adjacent Lot Owners that will have clear view of the anticipated structure. If there are no objections from adjacent Lot Owners, approval from the Master Association or Committee is not required; provided that the gazebo or pergola: (i) does not obstruct the adjacent Lot Owner's view; (ii) is similar in material and design to the residence; and (ii) is of the same color as the exterior of the residence or generally accepted as a complementary color to the exterior of the residence. If there are objections from adjacent Lot Owners, the Master Association board of directors or Committee will adjudicate the issue with due consideration of noted objections and will determine whether or not the Owner may install the Gazebo or pergola.

2.44 Grading and Grade Changes. See Drainage.

2.45 Greenhouses.

Approval is required.

2.46 Hanging of Clothes. See Clotheslines and Hangers.

2.47 Heating and Cooling Units and Solar Panels.

Heating and cooling units, excepting solar panels, shall not be installed or allowed to remain on the roof of any building or structure.

2.48 Hot Tubs.

Hot tubs must be installed as an integral part of the deck or patio area. Must be in the side or rear yard. Must be installed in such a way that it is not immediately visible to adjacent property owners, streets and trails and that it does not create an unreasonable level of noise for adjacent Lot Owners.

2.49 Intersections.

2.50 Irrigation Systems.

(a) See Paragraph 2.93, Sprinklers.

2.51 Jacuzzis. See Hot Tubs.

2.52 Junk Vehicles.

Inoperable vehicles cannot be, constructed, restored, or allowed to remain on any property so as to be visible from any other property, or road.

2.53 Kennels.

Approval of the Master Association or Committee is required. Kennels shall be substantially screened from view, and no more than five feet high in maximum height. The fence shall be of design and material so as to allow light to pass through and not be a solid wall Kennels are fenced off areas designed for either the full time occupancy or occupancy in excess of 4 hours per day of one or two dogs. No more than one kennel shall be erected on any Property. In the event that a kennel is constructed on any Lot then the Owner shall not construct a dog run on such Lot without obtaining additional approval from the Master Association or Committee.

2.54 Landscaping.

As The Pinery Filing No. 11 was being developed, initial occupancy of a Lot required compliance to landscaping guidelines intended

to produce a consistent environment and neighborhood feel with the intention of associated individual property valuation over time.

Those initial landscaping guidelines/regulations of The Pinery Filing No. 11 successfully produced a reasonably consistent appearance and "feel" for the neighborhood. As stated at the beginning of this document, as of 2016 the intent of these Guidelines are to maintain the overall general appearance and feel of the neighborhood as well as to preserve property values.

As of 2016, the 45 Lots associated with the Master Association have all been built and landscaping has been established. Accordingly, the original 1987 methodology of computing requirements for the minimum numbers of deciduous and evergreen trees based lot square footage did not seem to be a viable methodology to determine ongoing landscaping maintenance requirements for the Pinery Filing No. 11. Additionally, given the duration of time since their original instantiation and the turnover of individual Lot ownership, utilization of originally approved landscaping schemes for each Lot as a mechanism for dictating the replacement and maintenance of originally existing shrubs and lawns did not seem to be viable.

With drought, watering restriction considerations, and a general increased awareness of water conservation issues, the replacement over time of high water usage landscaping with xeriscaping schemes utilizing drought tolerant plants, shrubs, and grasses is anticipated to increase throughout the Pinery Filing No. 11 with the intent of reducing or eliminating the need for supplemental watering from irrigation.

Therefore, the addition of new, or replacement of existing landscaping plants, trees, shrubs, and grasses with materials that generally preserve the current appearance of the Lot or are intended to reduce the need for supplemental watering do not require Master Association or Committee approval.

2.55 Landscape Preservation.

Except for xeriscaping, major re-landscaping endeavors significantly changing the current appearance of the lot require approval. The primary intent of requiring approval of the Master Association or Committee is to maintain and preserve a general consistency of landscaping throughout the Pinery Filing No. 11.

2.56 Landscape Maintenance.

Each Owner shall be required to maintain their Lot in a first-

class condition, which shall include but not be limited to pruning/trimming of trees, cutting of ground cover, and weeding.

Removal of dead trees, tree branches, shrubs, and plants is a routine maintenance function and does not require Master Association or Committee approval.

2.57 Lights and Lighting.

As of 2016, all lots in Filing No 11 of The Pinery have had residences completed, inclusive of external lighting. Maintenance and replacement of external lighting and fixtures is expected and does not require association or Architectural Design Committee approval. For the replacement or installation of new external lighting and lighting fixtures, due consideration of the night time atmosphere of adjacent residences and neighbors is expected. Placement of external lighting should be made in such a manner as to avoid bright lights shining into adjacent Lots. Generally commercially available solar LED lighting, or lighting of a similar luminosity, may be installed without Master Association or Committee Approval. Floodlights and motion activated security lighting shall require approval.

2.58 Mailboxes.

As of 2016, mailboxes for all Lots in Filing No 11 of The Pinery have been long established. Occasional maintenance and/or replacement of mailboxes is expected due to normal usage, weather events such as hail damage, possible collision with vehicles, etc. Approval from the Master Association or Committee is not required, however due consideration for the general look and feel of the neighborhood should be used by the Owner.

The disposition of mailboxes viewed as offensive or eliciting complaints from Pinery Filing No 11 residents will be adjudicated by the Master Association or Committee with due consideration of the rationale identifying the mailbox to be offensive.

2.59 Microwave Dishes.

See Antennae.

2.60 Mining.

See Drilling or Mining.

2.61 Motor Homes.

Not permitted to be located long term or parked permanently in residential areas. See Parking.

2.62 Nonconforming Improvements.

If approval of the Master Association or Committee was provided in advance of implementation of any particular Improvement, the Lot Owner may not be required to remove said improvement or otherwise be fined for a violation of these Guidelines (as such may be amended after the date of such approval). Additionally, if an Improvement by a previous residence/lot Owner is deemed to be nonconforming, the current residence/lot owner may not be not be required to remove said Improvement or otherwise be fined for a violation of these Guidelines unless at the time of purchase or transfer of the ownership of such Lot the new Owner had actual knowledge, or should have had actual knowledge (due to the existence of a lien or pending suit relating to such nonconformance).

2.63 Ornaments.

Approval from the Master Association or Committee is not required for holiday and seasonal ornamentations, so long as they are removed in a timely manner.

Approval from the Master Association or Committee is not required for lawn or garden ornaments located in side or back yards, provided such ornamentation does not elicit any complaints from neighbors with views of such ornamentation.

The disposition of ornamentation viewed as offensive or eliciting complaints from Pinery Filing No 11 residents will be adjudicated by the Master Association or Committee with due consideration of the complaint regarding the ornamentation.

2.64 Outbuildings. See Accessory Buildings and Outbuildings.

2.65 Overhangs - Cloth or Canvas.

Approval from the Master Association or Architectural Design Committee is required. The color must be the same as or generally recognized as a complementary color to the exterior of the residence.

2.66 Painting.

The homes in The Pinery Filing No. 11 have a predominantly wood or wood/brick appearance. Maintenance of Cedar and other woods requires periodic staining/painting. Re-staining or repainting wood exterior surfaces substantially the same colors as they are currently does not require Master Association or Committee approval.

Use of any of the earth-tone colors found on the digital photograph sample board of the Piney Filing No. 1-8 Home Owners Association website currently available at http://www.pinery.org/images/about-us/arc_page/ColorBoard-lg.jpg, in accordance with the instructions set forth therein, shall not require approval of the Master Association or Committee.

2.67 Parking.

- (a) No vehicle of any kind, including but not limited to, automobiles, trucks, semi-trucks and/or trailer, buses, tractors, trailers, camping vehicles, boats, boat trailers, snow mobiles, mobile homes, two- and three-wheeled motor vehicles, or other wheeled vehicles shall be permitted to be parked regularly (i.e. more than 3 days per week) on a public street within the Project.
- (b) Regular parking (i.e. more than 3 days per week) shall not otherwise be permitted within the Project except within a garage or driveway.
- (c) Boats, campers, campers not on a truck, mobile or motor homes, trucks other than pickup trucks, horse trailers and other trailers, and other large vehicles shall not be permitted to be parked on the property except within a structure designed for such purposes. Exception to this item are for vehicles of guests, visitors, and other related users for a period not to exceed four days for any given visitation period.
- (d) Tractors, snow removal equipment, garden or maintenance equipment, and permitted vehicles other than automobiles, shall be kept at all times, except when in actual use, in structures intended for the storage of such devices and equipment.
- (e) Without limiting the generality of the powers of the Master Association with respect to parking, the Master Association is specifically authorized to have any vehicle parked in the street for longer than 5 days removed at the expense of the owner of the vehicle.

2.68 Patio Covers.

Approval is required. Must be constructed of wood or material generally recognized as complementary to the home and be similar

or generally recognized as complementary in color to the colors in the home. Freestanding patio covers may be permitted as well as extensions of the roof.

Maintenance of existing patio covers in The Pinery Filing No. 11 is expected and does not require Master Association or Committee approval provided the maintenance activities preserve the general appearance of the existing cover.

Should an Owner wish to replace an existing patio cover, they use materials of a similar nature and color scheme to the currently existing cover.

Should an Owner wish to install a new patio cover where one does not currently exist, the Owner should discuss the desired installation with adjacent Lot Owners who would have a clear view of the patio cover and provide a summary of the feedback received to the Master Association or Committee during the approval process.

2.69 Patios - Enclosed. See Additions and Expansions.

2.70 Patios - Open.

Approval is required. Must be an integral part of the landscape plan and must be located so as not to create an unreasonable level of noise for adjacent Lot Owners. Must be similar or generally accepted as a complementary color and design of the residence.

Should an Owner wish to install a new patio where one does not currently exist, the Owner should discuss the desired installation with adjacent Owners who would have a clear view of the patio and provide a summary of the feedback received to the Master Association or Committee during the approval process.

2.71 Pets.

Only standard household pets shall be raised, grown, maintained or cared for upon any Lot.

- (a) No more than two adult household pets that will predominantly use outdoor areas for exercise or for defecation shall be kept, maintained, or cared for upon any Lot.
- (b) All Lots and other portions of The Pinery Filing No. 11 must be maintained in a clean and odor-free condition.
- (c) Household pets shall not be allowed to run at large.

- (d) Habitually barking, howling or yelping dogs shall be deemed a nuisance.
- (e) No household pets shall be permitted if they habitually cause a nuisance, or odors, or noise affecting the use and enjoyment of neighboring properties.
- (f) The Board shall have the right to detain and impound, or otherwise cause the removal from The Pinery Filing No. 11 of household pets which run at large, which habitually annoy or threaten other Owners, Related Users, or other Owner's household pets.

2.72 Pipes. See Utility Equipment.

2.73 Play and Sports Equipment.

Approval is required for the construction of all play and sports equipment, including without limitation, swing sets, jungle gym sets, play houses, skateboard ramps and sandboxes. All approved play and sports equipment must be located in a fenced rear yard, and shall be approved only if installed in such a manner to cause minimal visual impact to surrounding property, including roads, trails and other public areas.

2.74 Poles. See Flagpoles, Utility Equipment, Basketball Backboards, etc.

2.75 Pools.

Approval is required. Pools shall be approved only if appropriately landscaped and screened in such a manner to cause minimal visual impact to surrounding property, including roads, trails and other public areas. Lot Owners shall be responsible for providing adequate security measure to prevent unauthorized or unsupervised use of pools. Above-ground pools will be discouraged.

2.76 Radio Antennae. See Antennae.

2.77 Residence Size.

Each residence shall be built on at least one Lot and shall meet the requirements for minimum dwelling size. The ground floor area of a residence, exclusive of porches, patios, and garages, shall not be less than fifteen hundred (1,500) square feet total for a one-story dwelling, and not less than eight hundred (800) square feet total for a two-story residence. A two-story or multi-story residence shall not be less than eighteen hundred (1,800) square feet total for the ground and upper stories.

2.78 Rooftop Equipment.

Approval is required. Must be painted a color similar or generally accepted as a complementary color to the exterior of the house and installed so the equipment is not visible to adjacent Lots. Rooftop equipment shall not include standard vents, chimneys, or skylights necessarily and by normal construction conventions protruding through the roof of a residence.

2.79 Sales Offices/Model Homes.

2.80 Saunas.

Approval is required.

2.81 Screen Doors. See Doors.

2.82 Setbacks. See Building Setbacks.

2.83 Sewage Disposal System.

No individual sewage disposal system shall be permitted on any Lot.

2.84 Shutters (Exterior).

Approval is not required if of a similar material and of a color and design generally accepted as complementary to the exterior of the house.

2.85 Siding. See Exterior Surfaces.

2.86 Sight Distance at Intersections. See Intersections.

2.87 Signs.

The construction or maintenance of billboards, "for rent" or "for sale" signs larger than six (6) square feet and poster boards or advertising structures of any kind on any lot is prohibited.

2.88 Solar Panels.

See Heating and Cooling Units and Solar Panels.

2.89 Spas. See Hot Tubs.

2.90 Sprinkler Systems.

Maintenance and upkeep of underground manual or automatic irrigation/sprinkler systems is expected, and does not require approval of the Master Association or Committee.

Replacement of an existing or installation of a new

irrigation/sprinkler system should provide due consideration of "overspray" onto adjacent Lot Owners shrubs, trees, existing structures, and parked vehicles. Approval from the Master Association or Committee is not required.

However, one or more permit(s) for a sprinkler system may be necessary from other agencies and are the responsibility of the Owner.

2.91 Statues.

Approval is required.

2.92 Stone Walkways.

Should an Owner wish to install a walkway other than driveways (See Driveways) intended to enhance the usability and/or aesthetic appearance of side and/or back yard areas, regardless of whether concrete, brick, flagstones, stepping stones, pre-cast patterned or exposed aggregate concrete pavers are used, the Owner should discuss the desired installation with adjacent Lot Owners. If there are no objections from adjacent Lot Owners, approval from the Master Association or Committee is not required. If there are objections from adjacent Lot Owners, the Master Association board of directors or the Committee will adjudicate the issue with due consideration of the noted objections and will determine whether or not the Owner may install the walkway.

2.93 Storage.

All outdoor storage equipment shall be kept screened by adequate planting or conforming building materials so as to be concealed from view of neighboring residences, trails and streets.

2.94 Storage Sheds. See Accessory Buildings.

2.95 Storage Tanks.

No storage tanks which extend above the ground shall be erected, placed or permitted upon any Lot.

2.96 Sunshades. See Overhangs.

2.97 Swamp Coolers. See Air Conditioning Equipment.

2.98 Swing Sets. See Play and Sports Equipment.

2.99 Television Antennae. See Antennae.

2.100 Temporary Structures.

Except for the rights of Declarant pursuant to Sections 7.15 and

7.20 of the Declaration, no temporary house, trailer, tent or other Outbuildings shall be no residence shall be occupied in any manner at any on any portion of The Pinery Filing No. 11. Camping tents for occasional overnight sleeping by children will not require approval if left up for no longer than 48 hours at any time and no more than 4 days in any 30-day period.

2.101 Trailers. See Parking.

2.102 Trash Containers and Enclosures.

Approval of a trash enclosure is required.

- (a) Refuse, garbage, trash, lumber, grass, shrub or tree clippings, plant waste, compost, metal, bulk materials, scrap, refuse or debris of any kind may not be burned, kept, stored or allowed to accumulate on any Lot.
- (b) Unobtrusive composting areas in a back (or side?) yard are acceptable if they do not present an unsightly appearance, become malodorous, or create a safe harbor for unwanted pests or wildlife such as raccoons or skunks. Smaller portable/movable composting containers with sealable lids are also acceptable.
- (b) All garbage cans shall be kept screened by adequate planting or conforming building materials so as to be concealed from view of neighboring residences and streets.
- (c) All waste intended for trash pickup shall not be placed in a street, driveway, yard, or any area visible from the street or neighboring residences more than twenty-four (24) hours prior to the scheduled pick up/removal of waste.

2.103 Tree Removal. See Landscape Preservation.

2.104 Treehouses.

Will not be permitted.

2.105 Trucks. See Parking.

2.106 Underground Installations.

Approval is required.

2.107 Utility Lines and Facilities.

All utility lines, including but not limited to, water, sewer, gas, electric, telephone and cable television, shall be buried underground.

2.108 Vanes. See Ornamentation.

2.109 Vehicles (Large). See Parking.

2.110 Vents. See Rooftop Equipment.

2.111 Walls. See Fences.

2.112 Walls - Retaining.

Approval is required.

2.113 Water Systems.

Approval is not required if the water system is completely contained within the residence and causes no architectural change to the exterior or said residence. No individual water supply shall be permitted on any Lot.

2.114 Wells.

Not permitted.

2.115 Windows and Awnings.

No reflective materials, including but not limited aluminum foil, reflective screens or glass, mirrored or similar type items, shall be permitted to be installed or placed on the outside or inside of any windows or any other part of a Lot, which can be seen from the outside of The Pinery Filing No. 11 or from other portions of The Pinery Filing No. 11. Further, no bedsheets, newspaper or similar items shall be permitted to be installed or place on the outside or inside of any windows or any other part of a Lot which can be seen from the outside of the Lot, unless otherwise approved in writing.

2.116 Wind Chimes.

Approval is not required if wind chimes cannot be heard by adjacent property owners.

2.117 Wood Storage.

Must be located in the side or back yard, adjacent to the residence, must be neatly stacked and must not be located as to block any existing drainage pattern on the Lot. All wood piles shall be kept screened by adequate planting or conforming building materials so as to be concealed from view of neighborhood residences, trails and streets.

III. PROCEDURE FOR COMMITTEE APPROVAL

3.1 General.

As indicated in the listing of specific types of Improvements, there are some cases in which advance written approval of the Master Association or the Committee is not required if the guidelines with respect to that specific type of Improvement are followed. In a few cases, as indicated in the listing, a specific type of Improvement is not permitted under any circumstances. In all other cases, including Improvements not include in these guidelines, Master Association or Committee approval is required before an Improvement to a property is commenced. This section of these guidelines explains how such approval may be requested.

3.2 Drawings or Plans.

Prior to commencement of work on any Improvement to property, the Owner must submit to the Master Association or Committee sufficient information to allow the Master Association or Committee to arrive at a determination of the acceptability of the proposed Improvement. Depending on the proposed Improvement, this information may include descriptions, surveys, plot plans, drainage plans, elevation drawings, constructions plans, specifications and samples of materials and colors as the Committee may reasonably request showing the nature, kind, shape, exterior design, height, width, color, building materials and location of the proposed Improvement plotted horizontally and vertically, the location and size of driveways, the general plan of landscaping, fencing, walls and windbreaks, and the grading plan as applicable. In some cases, the materials to be submitted will not have to be professionally prepared by an architect, and landscape architect or draftsman and a simple drawing and description will be sufficient. In the case of major Improvements, such as original construction of a residence, room additions, structural changes or Outbuilding construction, detailed plans and specifications, prepared by a licensed architect, may be required. Whether done by the Owner or professionally, the following guidelines should be followed in preparing drawings or plans.

- A) The drawing or plan should be done to a scale of 1/4" = 1' and should depict the property lines of the Lot and the outside boundary lines of the residence and Outbuildings as located on the Lot, if constructed. If the Owner has a copy of any improvement survey of the Lot obtained when the residence was purchased, this survey would be an excellent base from which to draw.
- B) The proposed Improvements should be shown on the plan and labelled. Either on the plan or on an attachment, there

should be a brief description of the proposed Improvement, including the materials to be used and the colors (Example: Redwood deck, 10 feet by 12 feet with two inch by four inch decking. Natural stain.)

- C) The plan or drawing and other materials should show the name of the Lot Owner, the address and a telephone number where the Lot Owner can be reached.

3.3 Submission of Drawings and Plans.

Two copies of the drawing or plan should be submitted to the Committee at the address stated in the introductory part of these Guidelines. One copy will be returned to the Owner after the Committee has acted, showing the Committee's decision. The other copies will be kept for the Committee's records.

3.4 Review Fee.

Section 6.3 of the Declaration authorizes the Committee to set and collect a fee for the review plans on proposed Improvements. A ten dollar (\$10.00) fee shall be collected from the Owner requesting approval from the Master Association or the Committee prior to review of any such plans. If the fee is not paid with the Plans submitted, the Plans shall be returned unapproved to the Owner. (At the Committee's discretion, upon cancellation the entire fee may be refunded.)

3.5 Action by the Committee.

The Committee will meet regularly to review all plans submitted for approval. The Committee may require submission of additional material and may postpone action until all required materials have been submitted. The Committee will contact the Owner or Owner's representative, by phone if possible, if they feel additional materials are necessary or if they need additional information or have any suggestions for change. A quorum at any meeting of the Committee shall consist of two (2) members and any decision shall be reached by a majority of such members. Under Section 6.3 of the Declaration, the Committee must act on the plans within forty-five (45) days after receipt of all materials required by the Committee (unless the time is extended by mutual agreement). The decisions of the Committee shall be promptly transmitted to the persons or entity submitting the request for approval (the "Applicant") at the address of the Applicant furnished by the Applicant to the Committee.

3.6 Failure of Committee to Act on Plans.

Any request for approval shall be deemed approved by the Committee, unless notice of disapproval of a request for additional information or materials is given to the Applicant by the Committee within forty-five (45) days after the date of

receipt by the Committee of all required materials, unless such time period is extended by mutual agreement.

3.7 Prosecution of Work.

- (a) Construction of Improvements approved by the Committee must commence within a period of one hundred eighty (180) days from the date of approval, unless the Committee provide otherwise. If no construction activity has taken place within such period, then any approvals of the Committee shall be considered null and void, and any later commencement of construction or alteration that was previously approved shall not be so commenced until a new application, including the payment of necessary fees, has been submitted to and final approval issued by the Committee.
- (b) All construction or alteration must be completed within nine (9) months from the date the construction or alteration is approved; provided, however, that the time limit for completion of the construction or alteration may be extended by the Committee as deemed appropriate.

3.8 Records.

The Committee shall maintain written records of all applications submitted to it and of all actions it has taken. The records will only be maintained for a 3 year period.

3.9 Rights of Appeal.

An Owner may, under Sections 6.6 of the Declaration, appeal to the Board of Directors of The Pinery Filing No. 11 in the event of adverse action by the Committee. The Applicant may appeal to the Board by giving written notice of such appeal to the Board of Directors, the Committee within thirty (30) days after the denial, imposition of conditions or refusal of approval. The Board shall appoint a tribunal pursuant to the Bylaws of the Master Association and the tribunal shall hear, de novo, the appeal in accordance with the provisions of the Bylaws for notice and hearing, and, based upon the tribunal's findings and recommendations, the Board shall be approved, disapproved or modified.

3.10 Appeal to Court of Law.

Nothing herein shall preclude the right of an aggrieved Applicant to appeal any decision of the Committee, or the Master Association board of directors, to a court of law for a final decision which shall be based on the records of the Committee or the Master Association board of directors; provided, however, such aggrieved

Applicant must first have exhausted all of his or her remedies and appeal procedures as are authorized under these Guidelines, and the Declaration.

3.11 Nonliability.

The Master Association and/or the Committee, or their duly authorized representatives shall not be liable, in any manner, for any action or failure of action taken hereunder. The Master Association and/or the Committee shall exercise their best judgement to see that all Improvements, construction, landscaping and alterations of lands and structures within The Pinery Filing No. 11 conform to and harmonize with existing surroundings and structures. Approvals of the Master Association and/or the Committee are related solely to the aesthetics and no party shall rely upon such approvals as certifying structural integrity, safety, engineering, soil conditions or absence of natural hazards; and the Master Association and/or the Committee shall not be liable for defects in the structural integrity, engineering or soils conditions or from effects of natural hazards.